

CV-24-004750 GOODY,JAMES JOSEPH vs FARINELLI, ALBERT - a) Defendants Maria Luz Vargas and Jesse Vargas' Motion for Summary Judgment - GRANTED, and unopposed; b) Defendants Yolanda Arnette Mccoy's and Eulene Ramsey's Motion for Leave to File their Amended Answer - GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) The Court finds that Defendants, as the moving parties, have carried the initial burden of demonstrating entitlement to judgment pursuant to the application of the "sudden emergency" or "imminent peril" doctrine herein. Specifically, the undisputed evidence submitted herein supports the conclusion that Defendant, Maria Luz Vargas, acting with reasonable care, was suddenly and unexpectedly confronted by an emergency she did not cause. (Shiver v. Laramie (2018) 24 Cal.App.5th 395, 397.) The burden then shifts to Plaintiff to submit admissible evidence demonstrating the existence of a material factual dispute preventing judgment as a matter of law. In view of the lack of opposition, Plaintiff has failed to carry that burden. Therefore, judgment is GRANTED in favor of the moving defendants herein. b) Defendants Yolanda Arnette McCoy and Eulene Ramsey move to amend their answer to include three new affirmative defenses. The motion is unopposed. "The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473.) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.) "Such amendments generally may occur 'at any time before or after commencement of trial, in the furtherance of justice' (§ 576) so long as the amendments do not raise new issues against which the opposing party has had no opportunity to defend. [Citations.]" (Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552, 577.) Here, Defendants McCoy and Ramsey seek leave to amend their respective Answers to include three new affirmative defenses that were not included in their original Answers. The first is the assertion of the Sudden Emergency Doctrine; the second is the assertion of Negligence Per Se; and the third is the assertion of Assumption of the Risk. (Memorandum at p. 4.) Defendants contend that sufficient facts supporting the proposed affirmative defenses became known after the parties engaged in limited discovery. Having considered the Defendants' motion, memorandum and accompanying declaration, and proposed amendments, the Court GRANTS the motion. The Court will sign the proposed order submitted by the moving parties. Defendants shall file their respective amended Answers within ten court days of the signed order.

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